

BARRETT, J., concurring in part

Under the Twenty-Fifth Amendment to the Constitution 5 (Aug. 28, 1974) (suggesting that the federal bribery statute applies to the President). Yet excluding from trial any mention of the official act connected to the bribe would hamstring the prosecution. To make sense of charges alleging a *quid pro quo*, the jury must be allowed to hear about both the *quid* and the *quo*, even if the *quo*, standing alone, could not be a basis for the President's criminal liability.

I appreciate the Court's concern that allowing into evidence official acts for which the President cannot be held criminally liable may prejudice the jury. *Ante*, at 631. But the rules of evidence are equipped to handle that concern on a case-by-case basis. Most importantly, a trial court can exclude evidence of the President's protected conduct "if its probative value is substantially outweighed by a danger of . . . unfair prejudice" or "confusing the issues." Fed. Rule Evid. 403; see also Rule 105 (requiring the court to "restrict the evidence to its proper scope and instruct the jury accordingly"). The balance is more likely to favor admitting evidence of an official act in a bribery prosecution, for instance, than one in which the protected conduct has little connection to the charged offense. And if the evidence comes in, the trial court can instruct the jury to consider it only for lawful purposes. See *Richardson v. Marsh*, 481 U. S. 200, 206–207 (1987). I see no need to depart from that familiar and time-tested procedure here.

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The Constitution does not insulate Presidents from criminal liability for official acts. But *any* statute regulating the exercise of executive power is subject to a constitutional challenge. See, e. g., *Collins v. Yellen*, 594 U. S. 220, 235–236 (2021); *Zivotofsky v. Clinton*, 566 U. S. 189, 192–194 (2012); *Free Enterprise Fund v. Public Company Accounting Oversight Bd.*, 561 U. S. 477, 487–488 (2010). A criminal statute is no exception. Thus, a President facing prosecution may